Syllabus

TRUMP, PRESIDENT OF THE UNITED STATES, ET AL. *v.* CALIFORNIA ET AL.

ON APPLICATION FOR STAY

No. 26A124. Decided August 24, 2026*

In March 2026, President Trump issued Executive Order No. 14399, 91 Fed. Reg. 17125, concerning federal elections. Among other things, the Order directs the Secretary of Homeland Security to "take appropriate action" to create and send "State Citizenship List[s]" to each State where doing so is feasible and lawful, §2(a), directs the Attorney General to prioritize the investigation of certain election-related crimes, §2(b), and directs the Postal Service to initiate a proposed rulemaking concerning mailed ballots, §3. The Order neither requires nor forbids anything of anyone outside the Executive Branch. And it demands that all of the Order's provisions "be implemented consistent with applicable law." A group of States and the District of Columbia sued, contending that portions of the Order unconstitutionally infringed their authority to administer elections. The District Court enjoined implementation of §§2 and 3 as to them, and the First Circuit denied the Government's request for a stay. The Government sought a stay from this Court.

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Held: The application for a stay in No. 26A124 is granted. The Government is likely to succeed in showing that the District Court lacked jurisdiction because the States lack standing and their claims are not ripe. The challenged provisions are internal Executive Branch directives that themselves impose no obligations or concrete harms on the States. See *Trump* v. *New York*, 592 U. S. 125, 134 (*per curiam*). Any claimed injury depends on speculation about how federal officials might implement the Order in the future, and expenditures made in anticipation of hypothetical future harms cannot create standing. See *Clapper* v. *Amnesty Int'l USA*, 568 U. S. 398, 414–415, n. 5, 416. The remaining stay factors also favor relief. The injunction interferes with the Executive Branch's internal operations by barring Homeland Security from trying to compile Citizenship Lists for about half the States in the Union, purporting to forbid the Attorney General to implement the President's enforcement priorities as to those same States, and preventing the Postal Service from so much as initiating a rulemaking that could yield a rule applicable to the States. And the Executive Order makes no demand of the

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*Together with No. 26A139, *Alabama et al.* v. *California et al.*, also on application for stay.